

HOUSE BILL 399

By Bricken

AN ACT to amend Tennessee Code Annotated, Title 12
and Title 49, relative to school safety.

WHEREAS, the alarming rise in school violence incidents, including those at after-school events, and recent threats have underscored the urgent need for proactive steps to bolster school safety for Tennessee students and communities, and to ensure secure learning environments; and

WHEREAS, disparities in resources among districts can lead to an inequitable distribution of security measures, notably in the availability of walk-through metal detectors, resulting in some local education agencies (LEAs) having access to these essential tools, while others lack the necessary funding mechanisms to safeguard their communities effectively; and

WHEREAS, it is imperative that each LEA in the State has equitable access to essential safety equipment. To address this need, this act introduces a pilot program focused on at-risk and distressed LEAs by providing grants for the acquisition of portable metal detectors, ensuring schools can deter potential threats and promote a secure atmosphere for students and staff, both during school hours and at after-school events; and

WHEREAS, it is the intent of this General Assembly to ensure that no school is left unprotected due to financial constraints, beginning with the State's most vulnerable communities, and to evaluate the effectiveness of providing targeted security resources; and

WHEREAS, by instituting a grant program to cover the full cost of obtaining, installing, and training personnel on the use of walk-through metal detectors, the State of Tennessee declares its unwavering commitment to fostering an equitable solution for enhanced security in

at-risk and distressed LEAs, ensuring that every child, educator, and visitor experiences a safe and secure educational environment; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, is amended by adding the following as a new part:

49-6-8201. Short title.

This part is known and may be cited as the "Protecting Tennessee Schools and Events Act."

49-6-8202. Part definitions.

As used in this part, unless the context otherwise requires:

(1) "Aggregate data" means summary level information collected to represent overall trends and outcomes, without reference to individual students or specific incidents;

(2) "Continuous operation" means the ability of the walk-through metal detector to function without interruption for a specified duration when powered by an internal battery, without the need for recharging or external power;

(3) "Deployment" means the installation, strategic placement, and operational use of walk-through metal detectors by an LEA, in accordance with this part;

(4) "Grant" means a protecting Tennessee schools and events assistance grant awarded to an LEA pursuant to this part;

(5) "Implementation effectiveness" means the overall impact and functionality of walk-through metal detectors in enhancing school security, as measured by activation counts, categorized items detected, and stakeholder feedback;

(6) "Ingress protection rating" means the level of protection against dust and water intrusion for electronic devices at an IP54 standard;

(7) "Maintenance" includes, but is not limited to, the regular inspection, testing, repair, and upkeep of walk-through metal detectors to ensure the walk-through metal detectors are properly functioning in accordance with the manufacturer's specifications;

(8) "Modular design" means a design in which the walk-through metal detector can be broken down into no more than four (4) separate components for ease of transport, setup, breakdown, and maintenance;

(9) "Portable walk-through metal detector" means a non-intrusive electronic device designed to detect the presence of concealed metallic objects on an individual passing through its portal by generating a magnetic field, and the device is equipped with advanced safety features to ensure maximum security while safeguarding students' well-being and privacy;

(10) "Qualitative feedback" means subjective insights and observations gathered from school personnel and stakeholders, typically collected through structured interviews or surveys, reflecting their perceptions of safety and security impacts;

(11) "School events" means extracurricular activities, athletic competitions, performances, assemblies, or other gatherings that are officially organized or sanctioned by an LEA and held on school grounds or at other locations designated by the LEA, whether occurring during, before, or after regular school hours; and

(12) "Training" means initial and ongoing instruction and guidance provided to personnel on the safe and effective use of portable walk-through

metal detectors, covering protocols for safety procedures, detection techniques, and appropriate interaction with students and the public.

49-6-8203. Establishment of grant program.

(a) By July 1, 2025, the department of education shall establish a pilot program to award protecting Tennessee schools and events assistance grants to LEAs located in counties identified as distressed or at-risk by the economic and community development's performance metrics for the fiscal year 2025, using funds appropriated by the general appropriations act for such purpose. The primary purpose of the grants is to assist LEAs located in counties identified as distressed or at-risk in purchasing portable walk-through metal detectors.

(b) The grants awarded pursuant to this part are dependent on the amount appropriated for the grants. It is the intent of the general assembly that funds are appropriated in an amount sufficient to provide each LEA that meets the requirements of subsection (a) with three (3) portable walk-through metal detectors. It is the intent of this part that the maximum amount of a grant awarded to an LEA for purchasing a portable walk-through metal detector shall not exceed sixteen thousand dollars (\$16,000) per portable walk-through metal detector or forty-eight thousand dollars (\$48,000) total per LEA.

(c) An LEA that meets the requirements of subsection (a) may apply to the department for a grant. The department shall award these grants on a first-come, first-served basis. An LEA shall not be awarded more than the general assembly's intent in subsection (b).

49-6-8204. Portable walk-through metal detectors.

A portable walk-through metal detector obtained by a grant awarded pursuant to this part must:

(1) Demonstrate the capacity to process at least twenty-five (25) individuals per minute or one thousand five hundred (1,500) individuals per hour in a single lane, under optimal flow conditions, with one (1) operator, excluding additional time required for individual checks when an alarm is triggered;

(2) Feature an open-top design, eliminating the need for a top arch, which prevents any height restrictions and promotes an unrestricted walkthrough experience, enhancing overall user comfort by allowing for natural walking posture;

(3) Comfortably accommodate foot traffic, wheelchairs, and other mobility assistance devices, such as walkers or crutches, adhering to accessibility standards to ensure inclusive use by all individuals;

(4) Activate a customizable alarm with both visual and audible alerts that can be adjusted for volume and tone. The alarm must activate in real-time or immediately upon detection to ensure the individual remains within the detection area for further inspection if needed;

(5) Include a multi-zone light array capable of pinpointing the precise location of detected items on a person's body, enabling quick identification of potential threats. The multi-zone light must be clearly visible and effective in both bright and low-light conditions, ensuring consistent performance across diverse environments;

(6) Have customizable audible alerts in both volume and tone;

(7) Include adjustable sensitivity settings for metal detection, enabling operators to calibrate the device according to the specific needs and environmental conditions of different school settings. The adjustable sensitivity settings must:

- (A) Minimize false alarms by allowing for fine-tuning to ignore common non-threatening metal items;
 - (B) Maintain high detection rates for actual threats;
 - (C) Support different sensitivity levels for various zones within the detector; and
 - (D) Be user-friendly to ensure that the portable walk-through metal detector can be easily tailored to operational requirements;
- (8) Be equipped with all necessary functions integrated directly into the unit, operating without external devices like tablets or smartphones for viewing scan results;
- (9) Be designed for portability, including:
- (A) A mobile base with four (4) lockable wheels for secure positioning;
 - (B) Balanced weight distribution for one-handed maneuverability;
 - (C) Capability of passing through a standard doorway without disassembly;
 - (D) Capability to navigate various terrains without modification to the portable walk-through metal detector; and
 - (E) An integrated design that requires no additional equipment for movement;
- (10) Have an ingress protection rating;
- (11) Be equipped with a rechargeable battery designed to provide at least six (6) hours of continuous operation without recharging;
- (12) Have a modular design; and

(13) Include or be compatible with a dedicated travel case, engineered to ensure safe handling, protection during transit, and secure storage, minimizing the risk of damage during movement between locations.

49-6-8205. Procurement.

(a) The local board of education for an LEA that is awarded a grant pursuant to § 49-6-8203 shall procure portable walk-through metal detectors in compliance with the minimum specification requirements described in § 49-6-8204. The procurement process must be managed by the LEA's director of schools or a designated administrative office in compliance with this state's procurement laws.

(b)

(1) An LEA shall use a competitive procurement process, as described in § 49-2-203(a)(3), to satisfy the requirements of subsection (a).

(2) In selecting a vendor, an LEA shall comply with the requirements of the Tennessee Minority-Owned, Woman-Owned, Service-Disabled Veteran-Owned, Business Owned by Persons with Disabilities, and Small Business Procurement and Contracting Act, compiled in title 12, chapter 3, part 11.

(c) In awarding a contract for the procurement of portable walk-through metal detectors, an LEA:

(1) Shall prioritize vendors that demonstrate the ability to provide additional features or services that enhance school safety and operational efficiency, including:

(A) Capabilities for visitor management and health screening, supporting credentialing, health screenings, and security screenings for diverse school and event needs;

(B) Integration with automated access control and real-time monitoring systems, enabling real-time alerts and enhanced access management;

(C) Data collection and analysis tools for monitoring visitor flow, alarm frequency, and security trends; and

(D) An operational presence within this state, ensuring responsiveness and familiarity with local needs, as well as the ability to provide ongoing maintenance and support; and

(2) May give additional consideration to vendors offering enhanced service options, including expedited delivery, on-site training, or the ability to integrate portable walk-through metal detectors with existing security infrastructure.

49-6-8206. Special Contract terms – Implementation.

(a) It is the intent of this part that LEAs enter into contracts pursuant to § 49-6-8205(a) as soon as practicable following the LEA's receipt of a grant under § 49-6-8203. Subject to the availability of funding, the goal is for all delivery, installation, and setup of portable walk-through metal detectors to be completed within three hundred sixty-five (365) days from the effective date of this act.

(b) A contract made pursuant to § 49-6-8205(a) must require that the vendor:

(1) Provide clear operational guidelines to ensure effective use, proper handling of false alarms, and protection of student privacy; and

(2) Conduct on-site training for school personnel and school resource officers at a designated location within each LEA. This training must include best practices tailored to each LEA, covering effective operation, false alarm protocols, privacy procedures, and strategic deployment.

49-6-8207. Vendor-led data collection and annual reporting.

(a) An LEA shall authorize a vendor procuring a portable walk-through metal detector pursuant to this part to conduct in-person observations and collect data on the implementation and overall effectiveness of the portable walk-through metal detectors procured pursuant to this part. The vendor shall coordinate with the LEA to schedule a visit on days in which screenings are planned, ensuring comprehensive and relevant data collection while minimizing disruption to regular operations.

(b) Data collected pursuant to this section must focus exclusively on aggregate trends and outcomes only and comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. 1232g); § 10-7-504; the Data Accessibility, Transparency, and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws. The data collected may include:

- (1) Total number of portable walk-through metal detectors' activations per school;
- (2) Categorization of detected items, such as weapons or contraband;
- (3) A summary of interventions made by school personnel or law enforcement due to alerts from portable walk-through metal detectors procured pursuant to this part; and
- (4) Qualitative feedback from school personnel on perceived changes in safety due to the portable walk-through metal detectors.

(c) The vendor shall submit an annual report to the LEA summarizing key findings from the data collected pursuant to this section. The LEA shall review the vendor's report and submit the vendor's report to the department, along with any additional feedback from the LEA. The department shall submit a consolidated report to the education committee of the senate and the committee of the house of

representatives having jurisdiction over school safety. The consolidated report must include:

- (1) A clear overview of the collected data and key trends;
- (2) An assessment of the effectiveness in enhancing school safety through the use of portable walk-through metal detectors procured pursuant to this part;
- (3) Identification of any challenges or areas for improvement related to the use of portable walk-through metal detectors procured pursuant to this part; and
- (4) Legislative recommendations for this part.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. The headings in this act are for reference purposes only and do not constitute part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.